

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
VERIFIED STATEMENT
OF PRIVACY

Defendants (caption order): SUBHI ABDELHALIM; CSAA Insurance Exchange; Carbone, Smith and Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas and Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); and DOES 1 through 20, inclusive.

I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of California:

0.5. This verified statement is filed under Code of Civil Procedure sections 446 and 2015.5 and California Rules of Court, rules 3.1115 and 2.257, to supply the same-party-or-privies element of

1 judicial estoppel under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987. It supports the Notice
2 of Cross-Case Judicial Estoppel Facts and seeks no relief.

3 1. I am Plaintiff in CGC-25-631801 and in the related action CGC-25-631802. The two actions
4 are related under California Rules of Court, rule 3.300.

5 2. CSAA Insurance Exchange is a named defendant in both cases. Carbone, Smith & Koyama,
6 LLP and Michael R. Chambers are named defendants in CGC-25-631801; CSAA is the sole
7 defendant in CGC-25-631802. Counsel for CSAA in both cases, and for Carbone and Cham-
8 bers in CGC-25-631801, is Porter Scott, A Professional Corporation. The signing attorneys
9 on every 801 and 802 defense brief identified in Exhibits Q-1 through Q-8 are Chad S. Tapp
10 (SBN 214898) and Tyler J. O'Connell (SBN 346673).

11 3. The 801 and 802 defense filings identified in Exhibits Q-1 through Q-8 bear the same signa-
12 ture blocks, the same firm letterhead (2180 Harvard Street, Suite 500, Sacramento, California
13 95815), and the same telephone and fax numbers, and concern the same underlying personal
14 injury action *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-
15 21-594102, the same insured (Subhi Abdelhalim), the same incident (February 4, 2021), the
16 same denial letter (February 25, 2021), and the same physical evidence (the 911 audio, body-
17 worn camera footage, and CAD logs).

18 4. The defense's reliance on the parent appeal *Rosario v. Abdelhalim*, A173827, in the 802
19 filings (for example, 802 anti-SLAPP MPA p. 1 footnote 1 and p. 2 footnote 3; 802 demurrer
20 MPA p. 2 footnote 2) confirms that defense itself treats the three matters (594102, 631801,
21 631802) and the pending appeal A173827 as one set of related proceedings for purposes of
22 position-taking.

23 5. This declaration satisfies element 1 of the judicial estoppel test under *Aguilar v. Lerner* (2004)
24 32 Cal.4th 974, 986-987 and *Jackson v. Cnty. of Los Angeles* (1997) 60 Cal.App.4th 171, 183
25 (same party or privies). It also supplies the privity foundation for the cross-case use of the
26 eight 802 defense filings in connection with any CRC 8.252 motion to augment in A173827.

27 Executed on May 26, 2026, at San Francisco, California.

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